CITY OF OPA-LOCKA

"The Great City"

Clerk's Action Summary Minutes
Regular Commission Meeting
May 13, 2009
7:00 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:00 p.m. on Wednesday, March 13, 2009 in the City Commissioner Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Commissioner Timothy Holmes, Vice Mayor Myra L. Taylor and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks and City Clerk Deborah S. Irby. Commissioner Rose Tydus arrived at 7:03 p.m.

3. INVOCATION:

The Invocation was delivered was Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

Attorney/Client Session

Pursuant to Florida Statutes, Section 286.011(8), an attorney-client session was held to consider settlement negotiations in the following case: Nikeya Hill & Natalie Buissereth v. City of Opa-locka, Florida, Case No. 09-CV-20662-Gold-McAliley, United States District Court case for the Southern District of Florida. In attendance were Mayor Joseph L. Kelley, Vice Mayor Myra L. Taylor, Commissioner Dorothy Johnson, Commissioner Timothy Holmes, Commissioner Rose Tydus; Bryan K. Finnie, Interim City Manager; Burnadette Norris-Weeks, City Attorney; Valerie Kiffin-Lewis, Assistant City Attorney and Court Reporting Services. The attorney-client session was closed to the general public.

The meeting adjourned 7:05 p.m. for the attorney-client session.

Upon conclusion of the attorney-client session, the Regular Commission Meeting of May 13, 2009 reconvened at 7:30 p.m.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Vice Mayor Taylor pulled agenda item 15-1 and Commissioner Holmes pulled agenda item 15-3 from the Consent Agenda.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:
There were none.

8. APPROVAL OF MINUTES:

Regular Commission Meeting – April 22, 2009

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the minutes of the Regular Commission Meeting of April 22, 2009.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Marc Brown, Assistant to District 1 Miami-Dade County Commissioner Barbara Jordan came forward and introduced Bonnye Deese of the Opa-locka CDC.

Bonnye Deese, Project Manager for the Miami-Dade Opa-locka Rehabilitation Project came forward for a slide show presentation on the rehabilitation homes completed in Opa-locka and provided an update on the remaining projects.

Commissioner Johnson expressed her concerns regarding environmental hazards in the homes.

Mrs. Deese reassured the Commission that the environmental hazards are being addressed.

Vice Mayor Taylor questioned Mrs. Deese regarding accommodation for the residents whose homes are undergoing major rehabilitation and couldn't remain in the house under those circumstances?

Mrs. Deese advised that all of the residents were able to remain in their homes during the rehabilitation process; however, if required, the contractor would relocate the residents.

10. PUBLIC PRESENTATION:

1. John Cook
   re: welfare of the City

(Prior to approaching the podium, Mr. Cook provided the City Clerk with copies of the police report and a photo of the vehicle involved in the accident for distribution to the Commission) John Cook of 14580 NW 27th Avenue, Opa-locka, Florida appeared before the City Commission and expressed his concerns relating to the number of errors by the police officer responding to emergency call when he was hit by a vehicle while crossing the street. He stated that although neither he nor any of the witnesses on the scene were interviewed, the case was later closed.

Manager Finnie informed the Commission that he is aware of the information Mr. Cook has provided and he has launched an investigation re-opening the case.

Commissioner Johnson felt because she had previously brought this incident to the City Manager's attention that the Commission should already have an answer.

Manager Finnie said the investigation was not complete because the Opa-locka Police Department is still in the process of interviewing witnesses identified; however, he would provide the Commission with an answer as to when the investigation would be complete by Thursday, May 14, 2009.

2. Fritz Javel
   Price Right Communications
   re: Lifeline Home Phone Service

Fritz Javel of Price Right Communications, 855 Carter Lane, Pensecola, Florida, appeared before the City Commission to provide information on the Lifeline Home Phone Service program available to the citizens of Opa-locka.

3. Rev. Abraham Thomas of 17320 NW 17th Avenue, Miami Gardens, Florida appeared before the City Commission and stated that after meeting with Miami Crime

Stoppers, he was asked to assist them in coming up with a song to get people to talk when witnessing crimes. As a result, the song has graduated into an album project of positive music that motivates people. He further requested donations towards the Crime Stoppers Music Project.

10a. CITIZENS' FORUM:

1. Laura M. Bentley of 1257 Kasim Street, Opa-locka, Florida, came forward to commend and thank the City of Opa-locka for the police presence in her neighborhood since she rarely sees a police officer in that neighborhood. She further requested that the city continue with the police presence in that neighborhood.

2. Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida appeared before the Commission to speak about the report relating to pension issues passed by ordinance as reported by the City Attorney at the April 22, 2009 meeting. He said he is sure the attorney will do a good job and make sure everybody turns their money back in.

11. ACTION ITEMS (items from consent agenda pull list):

15.1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO INSTITUTE A HIRING FREEZE FOR CITY STAFF EFFECTIVE _____, 2009. *Sponsored by J.K.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Vice Mayor Taylor asked for clarification on the resolution.

Being the sponsor of the resolution, Mayor Kelley said in looking at the information as presented, even in the amended budget document submitted by the City Manager via Finance, the city's revenues are declining. Based on that, the city must take a position to institute a hiring freeze except those deemed necessary by the City Manager which is provided in the resolution. He further stated that he would like for the freeze to become effective June 1, 2009 because the vacant positions currently out would be closed and/or filled by that date.

Manager Finnie respectfully asked to have the authority to have flexibility when dealing with the police officers as well as certain positions that come to mind which would save the city money in the long run. Having the flexibility to hire police officers according to the budget and fill positions that make sense economically for the city (i.e. cost savings) he would feel comfortable with Mayor Kelley's recommendation.

Based on the city's declining revenue, Mayor Kelley stated his intention with the resolution was not to impact police but those other positions being created that will save

money. He continued by expressing his concerns relating to hiring individuals with the intent of saving over a long period of time and whether that really has the same impact.

Vice Mayor Taylor informed Mayor Kelley that the resolution doesn't say "except public safety" therefore it would include everyone. Additionally, she asked for the effective date and how long would the hiring freeze remain in place.

Mayor Kelley stated the hiring freeze would be effective June 1, 2009 until the new budget is completed. In looking at the city's hiring, all positions posted for hiring has either closed or is about to close with the exception of police. But the City Manager is now saying he has a couple of positions he wants to fill.

Manager Finnie said that the city is now procuring a property room manager, once the property room manager position is filled, the certified police officer that's in the room could be put to work on the streets. There are a number of issues he is trying to work through that may not just be economical but he would love to have a discussion. Although he understood and supported the concept that the city's revenues are declining they must be prepared for a rainy day.

In view of the resolution, Vice Mayor Taylor asked the City Manager what is it that he wants to do.

Manager Finnie requested that he be allowed to sit with the Commission and bring back a modified resolution at the next meeting.

Commissioner Holmes was of the opinion that the resolution should have been brought forth in January because since then the City Manager has already hired over 15 people.

Mayor Kelley said he couldn't have sponsored the resolution in January because the city didn't have the declining revenue projections back then. At this point, the city must put a hold on hiring with the exception of police/public safety. He said if the Commission is not comfortable with the language in terms of giving him flexibility, he'd be willing to wait one meeting no longer. But in the midst of it, he doesn't expect to see 20 people hired between now and the next meeting.

He reiterated that he could hold off on the resolution for one meeting if 20 people don't get hired in between except for police officers.

Manager Finnie indicated that he understood the direction and was comfortable with it.

Commissioner Johnson requested that the City Manager provide a written strategy to the Commission to address the overtime in Community Development, Police Department, etc.

Manager Finnie stated that there is an overall strategy. As it relates to the property room, if the city hires a civilian in the property room, the city now has another police officer on the streets allowing for cutting back on overtime.

Commissioner Johnson expressed her concerns relating to overtime in the Community Development Department and the cost savings in Risk Management which was put into the Water & Sewer line but she would had preferred it in the police department budget.

Outside of Public Safety, Commissioner Tydus asked, how many unfilled budgeted positions does the city have?

Sharlene Boyd, Human Resources Director came forward and stated that there are three open budgeted positions already posted; Administrative Assistant in the Public Works Department, Crossing Guard and the Police Property Specialist.

Commissioner Tydus stated to the Mayor that there are only three open positions to be filled and not twenty.

Mayor Kelley stated to the Commission that his concern is hiring at this point whether the positions are budgeted or created. If the position is created, there needs to be a strategy where it's going to save money because he doesn't want to see the city hiring even if it is budgeted.

He continued by saying that he is willing to wait one meeting to allow the City Manager to develop his strategy but he wants to be clear that he doesn't want the city hiring 20 individuals before the resolution for the hiring freeze is passed.

The motion and seconded on the above resolution were withdrawn and the resolution was deferred to the Regular Commission Meeting on May 27, 2009.

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CREATION OF A MEMORIAL GARDEN FOR DECEASED EMPLOYEES OF THE CITY OF OPA-LOCKA TO BEGIN WITH THE YEAR 2008 AND GOING FORWARD. *Sponsored by D.J.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

Commissioner Holmes asked whether the city had the funds for the memorial garden and suggested that this be made a part of the Veterans Monument near City Hall.

Commissioner Johnson clarified that this resolution would be for a memorial walk path to recognize deceased employees and she doesn't think there's a cost associated with this. She stated that she wasn't aware of a designated area for the Veterans Monument.

Commissioner Holmes informed the Commission that the resolution talks about a memorial garden not a walk.

Following brief discussion, both Mayor Kelley and Commissioner Johnson thought it was best to incorporate the memorial walk for deceased employees with the Veterans Monument. It was indicated that Starex Smith is the project manager of the Veterans project and Commissioner Holmes suggested that the City Manager make sure Mr. Smith oversees said project until it is complete.

Commissioner Johnson suggested that the resolution for the veteran's project is brought back and that the memorial walk for the deceased employees be incorporated into it.

The motion and second on the above resolution were withdrawn.

12. NEW ITEMS:

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AMENDING ORDINANCE 08-13, THE GENERAL FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2008 AND ENDING SPETEMBER 30, 2009, ADJUSTING REVENUES AND EXPENDITURES AS SET FORTH AND ATTACHED IN EXHIBIT "A"; REFLECTING AN INCREASE IN REVENUE SOURCES IN THE AMOUNT OF FOUR HUNDRED FORTY ONE THOUSAND TWO HUNDRED AND SEVENTY SEVEN DOLLARS ($441,277.00); PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was ready by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Tydus to pass the above ordinance on first reading.

Vice Mayor Taylor expressed her concern relating to the ordinance wherein the verbiage in the title states "reflecting an increase" and the second whereas reflects the verbiage "reflect changes".

Attorney Weeks agreed to make the necessary change in the second whereas of the ordinance to read "reflect an increase".

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AMENDING ORDINANCE 08-14, THE PROPRIETARY AND SPECIAL REVENUE FUNDS BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2008, AND ENDING SEPTEMBER 30, 2009, ADJUSTING REVENUES AND EXPENDITURES AS SET FORTH AND ATTACHED IN EXHIBIT "A"; REFLECTING CHANGES IN REVENUE SOURCES AS FOLLOWS: CAPITAL IMPROVEMENT DEBT SERVICE (FUND 230), NINETY THREE THOUSAND TWO HUNDRED AND FORTY DOLLARS ($93,240.00); CAPITAL ACQUISITION (FUND 310), THREE HUNDRED AND FIFTY DOLLARS ($350.00); CAPITAL PROJECTS (FUND 320), FOUR HUNDRED AND FIFTY THOUSAND DOLLARS ($450,000.00); SOLID WASTE (FUND 410), FIFTEEN THOUSAND FIVE HUNDRED DOLLARS ($15,500.00); WATER AND SEWER (FUND 440), ONE HUNDRED AND FIFTY THOUSAND DOLLARS ($150,000.00); SPECIAL LAW ENFORCEMENT (FUND 165), TWO THOUSAND ONE HUNDRED DOLLARS ($2,100.00); FEDERAL EMERGENCY MANAGEMENT (FUND 169), ONE HUNDRED AND SIXTY THOUSAND DOLLARS ($160,000.00); DJJ OPA-LOCKA YOUTH ACADEMY (FUND 171), ONE HUNDRED AND EIGHTY THOUSAND THREE HUNDRED AND NINETEEN DOLLARS ($180,319.00); CRIME PREVENTION (FUND 172), THIRTY FIVE THOUSAND DOLLARS ($35,000.00); PEOPLES TRANSPORTATION TAX (FUND 176), SEVEN HUNDRED FOUR THOUSAND THREE HUNDRED EIGHTY TWO DOLLARS ($704,382.00); PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance on first reading.

As it relates to the Water & Sewer (Fund 440) in the amendment document, Commissioner Johnson said that she didn't see the increase of the savings from risk management in the amount of One Hundred Thousand Dollars ($100,000.00).

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and said the line item for insurance is in the general fund. The City Attorney's line item is in the general fund.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes

Commissioner Johnson	Yes
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; AMENDING CHAPTER 2, SECTION 2-44 OF THE OPA-LOCKA CODE OF ORDINANCES ENTITLED "SPECIAL MEETINGS" BY AMENDING PROVISIONS RELATED TO POSTING NOTICE FOR SPECIAL MEETINGS OF THE CITY COMMISSION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on April 22, 2009). *Sponsored by C.A.*

The above ordinance was read by title by Attorney Weeks.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on behalf of the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance.

Commissioner Holmes stated that all items amending the Charter must go before the Charter Review Board; therefore, he will not be supporting the ordinance.

There being no further discussion, the motion passed by a 4-1 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	No
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, EXPRESSING SUPPORT FOR THE MEMBERSHIP DRIVE OF THE MIAMI-DADE BRANCH OF THE NATIONAL ASSOCIATION FOR THE ADVANCEMENT OF COLORED PEOPLE (NAACP) AND ENCOURAGING ALL RESIDENTS OF THE CITY OF OPA-LOCKA TO SUPPORT SAID DRIVE. *Sponsored by M.T.*

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE EMERGENCY QUOTE FROM REPLAY SYSTEMS, INC., FOR THE PURCHASE AND INSTALLATION OF A POLICE DISPATCH VOICE RECORDING SYSTEM FOR THE OPA-LOCKA POLICE DEPARTMENT AT A COST OF SEVEN THOUSAND NINE HUNDRED NINETY-ONE DOLLARS ($7,991.00); FURTHER AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN THE SAME AMOUNT TO REPLAY SYSTEMS, INC., FOR THE PURCHASE AND INSTALLATION OF A POLICE DISPATCH VOICE RECORDING SYSTEM FOR THE OPA-LOCKA POLICE DEPARTMENT, PAYABLE FROM ACCOUNT 21-521643. *Sponsored by C.M.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE AN INVITATION FOR BID (IFB) FOR PURCHASE AND INSTALLATION OF LAPTOP COMPUTER MOUNTING CONSOLES FOR EXISTING MARKED POLICE VEHICLES. *Sponsored by C.M.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN THE AMOUNT OF EIGHT THOUSAND SEVEN HUNDRED DOLLARS ($8,700.00) FOR THE PURCHASE OF ELECTRONIC EQUIPMENT FOR THE CITY OF OPA-LOCKA CRIME PREVENTION PROGRAM, PAYABLE FROM ACCOUNT 74-529520. *Sponsored by C.M.*

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, PIGGYBACKING BID AWARD NO. 103-FFO4 BETWEEN THE SCHOOL BOARD OF MIAMI-DADE COUNTY AND SPRINT SOLUTIONS, INC., FOR CELLULAR VOICE AND DATA EQUIPMENT AND SERVICE, AND AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN THE MONTHLY AMOUNT OF SEVEN THOUSAND SIX HUNDRED EIGHTY TWO DOLLARS AND THREE CENTS ($7,682.03) FOR CELLULAR VOICE AND DATE EQUIPMENT AND SERVICE, PAYABLE FROM ACCOUNT NO. 19-519411. *Sponsored by C.M.*

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RECOGNIZING MAY 18 – 22, 2009 AS "NATIONAL PUBLIC WORKS AND PUBLIC SERVICE RECOGNITION WEEK" IN THE CITY OF OPA-LOCKA. *Sponsored by C.M.*

The above consent agenda items were read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the consent agenda resolutions.

The motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Tydus	Yes
Commissioner Johnson	Yes

Vice Mayor Taylor	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Finnie reported that the Human Resources, Finance, IT Department, Community Development and Code Enforcement are positioned in terms of those departments evolving and working aggressively towards the strategic plan. Over the next few months he would focus on the Police Department and Parks & Recreation.

He announced that the City of Opa-locka would accept applications for the Summer Youth Program on Saturday, May 16, 2009 at 8:00 a.m. in the Municipal Complex at Town Center, 2nd Floor. He provided detailed information on the qualifications, compensation rate, work hours, etc.

Lastly, he provided an overview of the tabbed items in the booklet provided to all members of the Commission. They were presented as follows:

Tab 1 Commission Meetings Action List – Responses/Results for the following meetings: April 22, 2009, April 8, 2009, March 25, 2009 and March 11, 2009

Tab 2 Historical Community Redevelopment Area (CRA) Information

Tab 3 Finance Department – Amended Operating Budget Fiscal Year 2009

Tab 4 Finance Department Reports

Tab 5 Stormwater Drainage Cleaning Schedule

Tab 6 Timeline for Demolition of Water Plant

Tab 7 Park and Recreation – Seniors on the Move Program Calender; May 2009 and Flag Football Registration Form

Tab 8 City of Opa-locka – In the News

Tab 9 Upcoming City Events 2009

Commissioner Johnson requested that the City Manager follow up on the complaint sent to the Commission regarding the Opa-locka Police Department and the priority list for the Strategic Plan.

Manager Finnie said he would be providing the information for the Strategic Plan on Friday, May 15, 2009; however, there is a staff strategic plan review scheduled for June 5, 2009.

Commissioner Johnson expressed her concerns regarding the watering of the newly planted trees which is obviously not taking place. Also, she received a complaint about a tree knocked down and that tree must be picked up. She said she would no longer support the Go Green Initiative because she doesn't think the city is serious about it; otherwise, all departments would have recycle containers.

Manager Finnie said he would provide Commissioner Johnson with the watering schedule.

As it relates to the continued cost of the IT Department, Commissioner Johnson said she is concerned about the equipment being purchased and where it is going. Additionally, the city recently switched from Nextel to Verizon and once again from Verizon to Sprint. She asked, what is the reason for the constant change in equipment?

Manager Finnie advised that the reason for the change in service providers is because of the cost savings to the city.

Commissioner Johnson requested to be provided with the cost savings as a result of the switch in cellular and data service providers during the budget process.

Due to the increasing number of complaints regarding high water bills, Commissioner Holmes requested that the city research to find out what is the cause for these complaints because there have been far too many residents complaining about the same thing. He requested that the City Manager continue working on finding a way to lower water costs to the citizens and look into the feasibility of Miami-Dade County taking over the city's utility/water operation.

He continued by requesting to be provided with the future plans for the Old Water Plant and making sure the residents are aware of the city's intentions.

He further asked to be provided with an update as it relates to the previous complaint from residents regarding the parking issue on Curtiss Drive.

As it relates to the ordinance on loud music in residential areas, Commissioner Holmes suggested that the city look into changing the ordinance to limit the noise in residential areas.

Commissioner Johnson requested that the City Manager look into the warnings issued by Code Enforcement for lawn maintenance because the pictures don't reflect overgrown lawns as stated in the warning.

With regards to the loud music Commissioner Holmes mentioned, Mayor Kelley advised that there is something on the books in terms of addressing that. He always had concerns about how the city issues those permits because the main concern is that all those kinds of permits come through the City Manager's Office via the Opa-locka Police Department and whoever is involved in that process should make sure that information pertaining to the gathering is documented and the patrolling officer on duty should be made aware. As

it relates to the utility bill, he suggested that the city look into having a system in place that automatically notifies the city of high utility bills that are out of the normal.

B. ACCOUNTS PAYABLE:

The City Commission instructed the city to pay its bills.

16. OFFICIAL BOARD REPORTS:

Commissioner Tydus briefly addressed and responded to an issue regarding the Charter Review Board and an advertisement for a public hearing.

She asked the City Clerk if the public hearing notice was rescinded as requested.

Clerk Irby stated that a notice was placed in the newspaper stating that the public hearing was cancelled.

Commissioner Tydus requested a copy of the advertisement.

17. CITY ATTORNEY'S REPORT:

Commissioner Johnson asked, was the $100,000.00 cost savings something the City Attorney initiated?

Attorney Weeks replied, no, she didn't take part in that discussion.

Commissioner Holmes stated to the City Attorney anytime there's a change in the Charter for the Commission to vote on, it must go before the Charter Review Board.

Attorney Weeks stated for the record no changes to the Charter have come before the Commission for consideration.

18. CITY CLERK'S REPORT:

Clerk Irby read into the record a "thank you" card sent from the Bullard family to the Commission and city staff expressing their gratitude for a professional performance during the funeral of their loved one.

Vice Mayor Taylor requested that the City Clerk keep the Commission updated on the 2010 Census.

19. MAYOR/COMMISSION REPORT:

Commissioner Johnson reported on the FIU Casa Blanca Housing for Domestic Violence, Pearls program and her trip to Chicago and Wisconsin to discuss Youth Prevention Programs.

Vice Mayor Taylor reported on her attendance at the City of Miami Gardens State of the City Address.

Commissioner Holmes thanked the city staff for their assistance with the complaints regarding high water bills.

Mayor Kelley reported on his attendance at several streetnaming ceremonies in the city, National Day of Prayer activities, Miami-Dade League of Cities Meeting and Mayor Shirley Gibson's State of the City Address. He stated that he met with FIU School of Medicine on some initiatives they're working with coming into the community which would be good to tie in to the CET program.

Commissioner Tydus reported that she had the honor and privilege to represent the city on May 9, 2009 as the Keynote Speaker at a Mother's Day Brunch at the City of Miami.

She further announced that Rays of Fortitude, a lupus awareness and education initiative, is having their annual benefit dinner on Sunday, May 17, 2009 at 5:00 p.m. at Don Shula's Hotel in Miami Lakes.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 9:19 p.m.

MAYOR

ATTEST:

CITY CLERK